

Tentative Rulings for June 9, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400140	BELLO VS RIVERSIDE COMMUNITY HOSPITAL	MOTION TO COMPEL DEPOSITIONS OF PLAINTIFF JUDY BELLO AND WITNESS/DAUGHTER KIM AUSTIN

Tentative Ruling: Defendant Riverside Healthcare System's UNOPPOSED Motion to Compel Deposition of Plaintiff and Plaintiff's Daughter is granted. Plaintiff is ordered to comply with this ruling within 30 days.

Sanctions is awarded AGAINST Plaintiff in reasonable reduced amount of \$560 (2 hours plus filing fee), payable within 30 days.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400857	A. VS MIMMS	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling: Def, Canyon Lake Property Owners Association's Demurrer to the 2nd Cause of Action is sustained with leave to amend within 20 days; as to the 3rd Cause of Action, it is overruled.

Court treats the demurrer as a motion to strike, which is granted as to paragraph 52 in 3rd cause of action of the SAC, but denied as moot as to the 2nd cause of action in light of the demurrer to that cause of action being sustained.

CAUSE OF ACTION FOR NEGLIGENT ENTRUSTMENT

"One who supplies directly or through a third person a chattel for the use of another whom the supplier knows or has reason to know to be likely because of his youth, inexperience, or otherwise, to use it in a manner involving unreasonable risk of physical harm to himself and others whom the supplier should expect to share in or be endangered by its use, is subject to liability for physical harm resulting to them." (Rest.2d of Torts, § 390; see also § 308.) In other words, negligent entrustment is a negligence theory that holds the entrustor liable for harm to a third party caused when they provide a dangerous instrumentality, such as a vehicle, firearm, or heavy equipment, to an incompetent entrustee, who is unfit to use it safely. Liability arises not from "the relationship of the parties, but from the act of entrustment" of the instrumentality, "with permission to operate the same." (*Garza v. Tesla, Inc.* 2025 Cal.Super.LEXIS 24731 *7.) "It must be noted that the common law doctrine of negligent entrustment can arise in many factual contexts, as well as employment." (*Jen-Weld, Inc. v. Sup. Ct.* (2005) 131 Cal.App.4th 853, 862.) Typically, this cause of action is applied to the entrustment of motor vehicles.

The elements of negligent entrustment are: 1) the entrustee was negligent in operating the vehicle; 2) defendant was an owner of the vehicle operated by the entrustee; 3)

defendant knew, or should have known, that the entrustee was incompetent or unfit to operate the vehicle; 4) defendant permitted the entrustee to use the vehicle; and, 5) the entrustee's incompetence or unfitness to operate the vehicle was a substantial factor in causing harm to plaintiff. (see *Jen-Weld, supra.*)

CLPOA asserts that there are no allegations that it entrusted any chattel or instrumentality to Mimms that he used to harm Plaintiff. To the contrary, Plaintiff argues that negligent entrustment is *not* limited to a physical "chattel" like a car or a gun, but she then cites to the Restatement Second of Torts § 390, which explicitly states: "One who supplies ... *a chattel* ..." (emphasis added.) Plaintiff argues that CLPOA "supplied Mimms the keys to the kingdom: physical access to a controlled-entry gated community, vehicular authority on the premises, and official authority over residents", which constitutes instrumentalities (access, authority, and a vehicle) that "enabled every aspect of Mimms' predatory conduct." (Oppo. p. 11:17-22.) Notably, "access" and "authority" are not chattels. And, Plaintiff cites no authority for treating "access" and "authority" as chattels (or instrumentalities.)

Nonetheless, it is alleged that Mimms was given authority "to operate a *vehicle* on the premises", which is a chattel that Mimms used as the instrument of abduction to transport Plaintiff away from the community. (SAC ¶¶ 22, 36.) The remainder of CLPOA's arguments as to this cause of action rely on principles of negligent hiring, supervision, and retention, which involve a different negligence theory (discussed below.)

In its current form, the SAC alleges that CLPOA gave Mimms "permission to operate a *vehicle* on the premises" (4th element.) (SAC ¶ 36; see CACI No. 724.) However, what is missing from the SAC are allegations that Mimms was *negligent* in operating the vehicle (1st element); that CLPOA *owned* the vehicle (2nd element); that CLPOA knew or should have known Mimms was incompetent or unfit *to operate the vehicle* (3rd element); and, that Mimms' incompetence or unfitness *to operate the vehicle* was a substantial factor in causing harm to Plaintiff (5th element.) (*Jen-Weld, supra.*; CACI No. 724.)

CAUSE OF ACTION FOR NEGLIGENT HIRING, SUPERVISION AND RETENTION

An employer may be directly liable to a third party for its negligence in hiring, supervising or retaining an unfit employee. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.) The employer is liable because he knew or should have known that the employee created a particular risk or hazard, and that harm materializes. (*Id.*) Liability "is based upon the reasoning that if an enterprise hires individuals with characteristics which might pose a danger to customers or other employees, the enterprise should bear the loss caused by the wrongdoing of its incompetent or unfit employees." (*Mendoza v. City of Los Angeles* (1998) 66 Cal.App.4th 1333, 1339.) Notably, the employer must have a reason to believe that an undue risk of harm will result by hiring the employee. (*Roman Catholic Bishop v. Superior Court* (1996) 42 Cal.App.4th 1556, 1566-1567.) In other words, the employer must know or should know the employee is unfit because of past conduct (e.g., conviction, propensity for violence.)

The elements of negligent hiring, supervision or retention are (1) that the employer defendant hired the alleged wrongdoer; (2) that the alleged wrongdoer was or became unfit or incompetent to perform the work for which he or she was hired; (3) that the employer knew or should have known that the alleged wrongdoer was or had become unfit or incompetent and that the unfitness or incompetence harmed the plaintiff; and (4) that the employer's negligence in hiring, supervising, or retaining the alleged wrongdoer was a substantial factor in causing plaintiff's harm. (CACI 426.)

CLPOA only argues that Mimms was Allied's employee and was not employed by CLPOA. To the contrary, Plaintiff argues that the SAC does *not* allege only that CLPOA employed Allied, but that CLPOA (and Allied) hired and supervised Mimms directly as an agent and contractor performing services on its behalf. (see SAC ¶¶ 5, 18, 44.) Plaintiff argues that CLPOA is a principal just as Allied, and that Mimms carried out CLPOA's activities. (Oppo. p. 18:10-12.) Under California law, "A person conducting an activity through servants or other agents is subject to liability for harm resulting from his conduct if he is negligent or reckless: ... [P] (b) in the employment of improper persons or instrumentalities in work involving risk of harm to others[.]" (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836, citing Restatement 2d of Agency § 213.)

Plaintiff also argues that CLPOA had a non-delegable duty to ensure the fitness of security personnel that had access to the Canyon Lake community. Plaintiff points out that the SAC alleges that CLPOA knew or should have known of Mimms' unfitness. (SAC ¶¶ 37, 44-48.) It also alleges that CLPOA's negligent hiring, supervising, and/or retention of Mimms "was a direct, proximate and legal cause and substantial factor in causing Plaintiff's harm." (SAC ¶ 50.) Further, the SAC alleges that CLPOA directly supervised Mimms by directing and authorizing his patrol activities, and failing to prevent his actions in removing Plaintiff from the premises during his work shifts. (SAC ¶¶ 25, 47.) Thus, the elements of this cause of action are sufficient for pleading purposes.

Punitive Damages

"A motion to strike, not a general demurrer, is the procedure to attack an improper claim for punitive damages or other remedy demanded in the complaint. Reason: A general demurrer challenges only the sufficiency of the *cause of action* pleaded, and must be overruled if *any* valid cause of action is pleaded; a demand for improper relief does not vitiate an otherwise valid cause of action." (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 7:42.1 citing *Venice Town Council, Inc. v. City of Los Angeles* (1996) 47 Cal.App.4th 1547, 1561-1562.)

CLPOA has only filed a demurrer, not a motion to strike. And, CLPOA has not referenced the portions of the SAC that should purportedly be stricken.

Nonetheless, the Court treat the demurrer to punitive damages as a motion to strike, it should be granted, in part. To set forth a claim for punitive damages, Plaintiffs must allege ultimate facts showing oppression, fraud or malice. (Civil Code §3294.) Mere negligence, even gross negligence, is not sufficient to justify an award of punitive

damages. (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894-895; *Moody v. McDonald* (1854) 4 Cal. 297, 299.) The current definitions of “malice” and “oppression” were changed by the 1987 amendments to Civil Code §3294, to incorporate “despicable conduct.” The amendments narrowed the definitions so that punitive damages will only be awarded to punish conduct that is so “vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down on and despised by ordinary decent people.” (*Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 331.) In addition, “[w]ith respect to a corporate employer, the advance knowledge of conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (CCP § 3294(b).)

Here, the SAC properly alleges the 3rd cause of action for negligent hiring, supervision and retention, as discussed above. However, it includes an allegation seeking punitive damages that is not supported by the negligence allegations. (SAC ¶ 52.) Thus, the Court strikes paragraph 52 of the SAC, without leave to amend. Otherwise, the punitive damages challenge as to the 2nd cause of action is moot since the demurrer is sustained.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501412	SERRATO VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiff’s Motion for Attorney’s Fees is granted in the reasonable reduced amount of \$ 22,400.50; as to costs, it is reduced to \$878.70.

Attorneys’ fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) The Song Beverly Act provides, “[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees, based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civil Code §1794(d).) The trial court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case, including the complexity of the case, procedural demands, skill exhibited, and results achieved, the amount of actual time expended and the monetary charge being made for the time expended are reasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.) If the time expended or monetary charge is not reasonable, the court should reduce the amount. (*Ibid.*)

On November 4, 2025, Plaintiff accepted GM’s settlement offer, which expressly provided that Plaintiff is the prevailing party and entitled to fees and costs. Defendant does not dispute that Plaintiff is the prevailing party, but argues that the fee request is unreasonable and excessive.

Lodestar:

The lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate. (Id at 998.) The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Verified billing records constitute prima facie evidence that the fees were reasonable. (*Hadley v. Krepel* (1985) 167 Cal. App. 3d 677, 682.) Once the prevailing party has made a prima facie showing that its fee request was fair and reasonable, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours or the hourly rate or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

Billing Rates:

A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may rely on its own experience in determining whether the hourly rate sought is reasonable. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774.) In determining the value of the legal service, courts consider several factors, including, “the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (*PLCM Group, Inc., supra*, 22 Cal. 4th at 1096.)

Plaintiff requests hourly rates ranging from \$430 to \$695/hour. Based on the Fee Survey, the median rate for attorneys with 16-20 years of experience was \$422, while the median for 11-15 years was \$406. (Id.) While these rates should be adjusted upward for inflation, \$695/hour appears to be excessive for lemon law cases in Riverside County. Therefore, the rate requested by Attorney Barry, with 23 years of experience, should be adjusted down to \$600/hour. Attorney Storti requests a rate of \$600, which is reasonable for 25 years of experience. Likewise, the rates requested by Attorneys Rabienian and Pascal are arguably reasonable for six to seven years of experience.

Hours Incurred:

Plaintiff claims that counsel billed 40.6 hours on this case. Counsel produced extensive billing records showing the time for each tasks. Generally, billing records are given a presumption of credibility. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. Failure to raise specific challenges in the trial court forfeits the claim on appeal.” (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

GM argues that time incurred before Plaintiff became a client is not compensable. However, the Song Beverly Act provides for attorney's fees for actual time expended in connection with the *commencement* and prosecution of such action. (Civil Code §1794(d), emphasis added.) Because the initial phone calls with Plaintiff as a potential client and review of repairs were reasonably incurred in the commencement of the action, Plaintiff is able to recover these fees. Defendant also argues that 3 hours of client communication at a senior level rate is excessive. It is not clear that the hours are unreasonable since any information regarding the discussion would be privileged.

Defendant argues that the fees requested in connection with the Motion for Protective Order and the present fee motion are excessive because counsel relied on templates and has filed nearly identical briefs in other cases. The Court is aware of the use of templates in lemon law cases. However, in reviewing the records, it is not clear that the hours are excessive for reviewing and editing the templates. Overall, Defendant has not satisfied its burden of showing that the 40.6 hours requested are clearly unreasonable. The fee award is reduced by \$1,425 to reflect the reduced billing rate for Attorney Barry. Thus, the lodestar total is \$22,400.50.

Plaintiff requests .10 multiplier. The court then has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery.” (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) A contingent fee is generally higher than a fee for the same legal services paid as they are performed to compensate for the loan of those services and risk of loss. (*Ketchum v. Moses* (2001) 24 Cal. 4th 1122, 1132.) “However, although taking a case on a contingent fee basis may support an award of a multiplier, it does not compel, it.” (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal. App. 4th 1179, 1188.) Here, the contingency risk was reduced due to the fee-shifting provision of the Song Beverly Act. The request for multiplier is denied.

Litigation Costs and Expenses:

“Except as otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (CCP § 1032(b).) Generally, CCP § 1033.5 enumerates categories of costs that are allowable and items that are not allowable. The Song Beverly Act allows a prevailing buyer to recover costs and expenses which are reasonably incurred in connection with the commencement and prosecution of the action. (Civil Code §1794(d).) The additional term “expenses” was included in this section to cover items that would not otherwise be included in the detailed statutory definition of “costs” under CCP § 1033.5. (*Jensen v. BMW of North America* (1995) 35 Cal.App.4th 112, 137-138.)

“If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred. Where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs.” (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.) The prevailing buyer bears the burden of showing that costs or

expenses were (1) reasonably necessary to the conduct of litigation and (2) reasonable in amount. (*Ibid.*)

On April 23, 2026, Plaintiff filed his Memorandum of Costs, requesting \$2,239.57 in costs and expenses.

Defendant argues that the jury fees should be stricken. Jury fees are proper on their face. (See CCP § 1033.5(a)(1).) Although the present case did not go to trial, Plaintiff was required to pay the jury fees in order to preserve the right to a jury trial in event the case did not settle. The jury fee must be paid on or before the date scheduled for the initial case management conference. (CCP § 631(c).) Therefore, the payment was reasonable and necessary.

Defendant also challenges the deposition costs, electronic filing fees and court reporter fees as unsubstantiated by evidence. Plaintiff was not required to include invoices with the Memorandum of Costs. However, once Defendant objected to these costs, Plaintiff was required to prove the expenses, which she has not done. As such, the costs is reduced by \$1360.87 for a total award of \$878.70

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505716	DOE VS SOUTHEASTERN CALIFORNIA CONFERENCE OF SEVENTH-DAY ADVENTIST	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: Defendant's Demurrer is overruled, as to the 4th Cause of Action (for sexual battery); and sustained as to the 1st (negligent supervision of a minor), 2nd (negligent supervision of an employee), 3rd (negligent retention), and 5th (NIED) causes of action with leave to amend within 20 days.

Pursuant to C.C.P. § 430.41(a), before filing a demurrer, the moving party must meet and confer in good faith with the plaintiff via phone or in person. Here, Defendant's counsel states that she sent one letter to Plaintiff's counsel regarding the demurrer, and Plaintiff's counsel did not reply. (See, Decl. of Donna Diaz at ¶¶ 2-3.) There is no evidence that defense counsel called Plaintiff's counsel to discuss the merits of the demurrer, or even followed up on the email sent. C.C.P. § 430.41(a) very clearly requires that parties meet and confer by telephone or in person, regardless of the prospects of an informal resolution, and based on the evidence presented, Defendant did not do this. Nonetheless, court exercises its discretion to consider the Demurrer.

Plaintiff first argues that the Court should overrule the demurrer because it is untimely. Pursuant to C.C.P. § 430.40(a), a demurrer must be filed within 30 days of service of the Complaint/FAC. Here, Plaintiff filed the FAC on March 20, 2026, and served it electronically the same day. Defendant filed its demurrer on April 23, 2026, 34 days later. Accordingly, Plaintiff is correct that the demurrer was not timely filed. However, the

Court has discretion to consider an untimely motion. (See, CRC 3.1300(d); *Slayton v. Superior Court* (2006) 146 Cal.App.4th 55, 58, n. 2; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29.) Additionally, challenging a motion or opposition on the merits rather than only objecting to its procedural inadequacies may constitute a waiver of any objection thereto. (See, *Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 59.) In the present case, the Court exercises its discretion and rule on the demurrer despite it being filed late because Plaintiff had sufficient time to file a substantive opposition, so she was not prejudiced by the delay.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

NEGLIGENT SUPERVISION OF A MINOR (1ST) CAUSE OF ACTION

Plaintiff's first cause of action is for negligent supervision of a minor, which is a negligence cause of action. To maintain a cause of action for negligence, the plaintiff must show: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Without a duty of care owed by the alleged wrongdoer to the person injured, no negligence is established. (*Jean Hamilton v. Gage Bowl, Inc.* (1992) 6 Cal.App.4th 1706, 1711.) "It is well established that 'the existence and scope of a duty are questions of law, while breach, causation, and injury are fact-specific issues for the trier of fact.'" (*Achay v. Huntington Beach Union High School District* (2022) 80 Cal.App.5th 528, 535.)

As a general rule, all persons have a duty to use ordinary care to prevent others from being injured as a result of their conduct. (See, Civ. Code §1714(a); *Doe v. Superior Court* (2015) 237 Cal.App.4th 239, 244–45.) However, under traditional tort law principles, one is ordinarily not liable for the actions of another and is under no duty to protect another from harm, in the absence of a special relationship of custody or control." (*Nally v. Grace Community Church of the Valley* (1988) 47 Cal.3d 278, 293; *Benavidez v. San Jose Police Dept.* (1999) 71 Cal.App.4th 853, 859.) In *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 217, the court held that if there was no special relationship and no other circumstances that give rise to an affirmative duty to protect from a third party, there can be no such duty based on the *Rowland* factors. "A special relationship between the defendant and the victim is one that 'gives the victim a right to

expect' protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that 'entails an ability to control [the third party's] conduct.'" (*Id.* at 216.) As the court in *Colonial Van & Storage, Inc. v. Superior Court* (2022) 76 Cal.App.5th 487, 500 explained:

A defendant may have an affirmative duty to protect the plaintiff from harm by a third party "even though the risk of harm is not of the defendant's own making," if a special relationship exists. [Citation.] "Relationships that have been recognized as 'special' share a few common features. Generally, the relationship has an aspect of dependency in which one party relies to some degree on the other for protection. [Citations.] ... [¶] The corollary of dependence in a special relationship is control. Whereas one party is dependent, the other has superior control over the means of protection. '[A] typical setting for the recognition of a special relationship is where "the plaintiff is particularly vulnerable and dependent upon the defendant who, correspondingly, has some control over the plaintiff's welfare." ' " [Citation.] As a result, the plaintiff can claim a right to expect the defendant's protection. [Citation.]

The determination of whether a duty is owed is an issue of law for the court. (*Kentucky Fried Chicken of Calif., Inc. v. Sup. Ct. (Brown)* (1997) 14 Cal.4th 814, 819). Where there is no legal duty, such serves as a complete defense to a negligence cause of action. (*Sprecher v. Adamson Companies* (1981) 30 Cal.3d 358, 362).

Plaintiff here alleges and argues that Defendant had a special relationship with her because she engaged in church activities, and Defendant therefore owed her a duty to prevent Dien's abuse.

In the context of sexual abuse of minors, examples of special relationships have been found where children were attending schools or participating in church-sponsored programs [*Doe v. Roman Catholic Archbishop of Los Angeles* (2021) 70 Cal.App.5th 657, 671-672], attending camp away from the parents [*Doe v. Superior Court* (2015) 237 Cal.App.5th 239, 246-248], and when on a team where the coaches were acting as quasi-parents with players [*Doe v. United States Youth Soccer Association, Inc.* (2017) 8 Cal.App.5th 1118, 1129-1131].

Plaintiff cites the case of *Conti v. Watchtower Bible & Tract Society of New York, Inc.* (2015) 235 Cal.App.4th 1214, as support for its position that Defendant had a duty to Plaintiff because she was engaged in church related activities when the abuse occurred. (Opposition, p. 7:2-11.) In *Conti*, a minor who was sexually abused by a member of her congregation while they were engaged in "field service," a church-sponsored activity where members go door-to-door preaching in the community, sued the church and its elders. (*Conti, supra*, 235 Cal.App.4th at 1217.) Plaintiff is correct that the court in *Conti* held "under the special relationship doctrine and the Rowland factors that defendants had a legal duty to exercise due care to prevent Conti from being molested *during her church-sponsored field service.*" (*Id.* at 1233 [emphasis added].)

However, the court also held that a church did not have a special relationship with its members or children that would require the church to warn about a member that had previously molested a child, or to continuously monitor that member. (*Id.* at 1227-1231.) Specifically, the *Conti* court stated “[t]here was no special relationship between the church and all of the children in the Congregation simply because they were members of the church. Nor did the church have a special relationship with Kendrick, for purposes of a duty to monitor his behavior toward children, by virtue of control over his conduct with them.” (*Id.* at 1231.) The Supreme Court of California has also held that a religious counseling relationship is insufficient to create a special relationship and duty to prevent harm. (*Nally v. Grace Community Church* (1988) 47 Cal.3d 278, 293-294 [Court held that a pastor who provides counseling to a church member does not have a duty to prevent suicide or refer the member to a licensed professional].)

Here, Plaintiff argues that she had a special relationship with Defendant because she was involved in church related activities when she was abused by Dien. (Opposition, p. 8:12-14.) She alleges that Dien’s inappropriate conduct toward her occurred when he drove her to church, provided counseling and moral guidance, and had her assist him with translating sermons from Indonesian to English, often in his vehicle. (FAC at ¶¶ 13-19, 89.) There are no allegations that the conduct occurred while she was attending school or engaged in other church-sponsored activities where she was under the custody and/or control of the Church. Thus, the facts alleged do not support a finding that Defendant had a special relationship with Plaintiff. (See, *Nally*, *supra*, 47 Cal.3d 293-294.)

Furthermore, Plaintiff’s reliance on *Juarez*, *supra*, 81 Cal.App.4th 377 and *United States Youth Soccer*, *supra*, 8 Cal.App.5th 1118 are unhelpful, as those cases are distinguishable.

In *Juarez*, the court did not find there was a special relationship, but instead that the defendant’s duty to the plaintiff existed based on the *Rowland* factors. (*Juarez*, *supra*, 81 Cal.App.4th at 401-411.) However, the California Supreme Court in *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, disapproved of this holding, finding instead that if there was no special relationship giving rise to an affirmative duty to protect from a third party, there can be no such duty based on the *Rowland* factors. (*Id.* at 217.) The Court stated:

Brown argues for a different approach to the duty to protect. She argues that even if the defendant lacks any special relationship with the parties and there are no other circumstances that would give rise to an affirmative duty to protect, such a duty may nonetheless arise after considering the policy factors set out in the landmark decision in *Rowland*, *supra*, 69 Cal.2d 108, 70 Cal.Rptr. 97, 443 P.2d 561. *We reject the argument.*

(*Id.* at 217 [emphasis added].) The Court went on to say:

Where such a special relationship exists between the defendant and a minor, the obligation to provide such protection and assistance may include a duty to protect the minor from third party abuse. ... And there may be

other circumstances that give rise to a comparable affirmative duty to protect. ... *But where no such circumstances exist, the Rowland factors do not serve as an alternative basis for imposing duties to protect.* The purpose of the *Rowland* factors is to determine whether the relevant circumstances warrant limiting a duty already established, not to recognize legal duties in new contexts.

(*Id.* at 220-221 [internal quotations omitted][emphasis added].) In coming to this decision, the *Brown* Court specifically disapproved of the *Juarez* court's finding of a duty based only on the *Rowland* factors. (*Id.* at n. 9.)

In *United States Youth Soccer*, where a minor was abused by a coach, the national soccer association had bylaws that required state associations and affiliate leagues to screen criminal conviction information on coaches by voluntary disclosure rather than independent third parties. (*Id.* at 1126.) The court there found a special relationship since the league affiliates were required to comply with policies of the national soccer association, and noted that *mandatory attendance* was one of the bases for the special relationship, because, like a school, parents entrusted the defendants to keep their children safe. (*Id.* at 1130-1131.) In the present case, Plaintiff's attendance at the Church was not mandatory, and there are no other factor showing custody or control over Plaintiff. Therefore, Plaintiff has not pled sufficient facts to establish Defendant owed a duty to her to protect her against Dien's conduct.

NEGLIGENT SUPERVISION OF AN EMPLOYEE (2ND) AND NEGLIGENT RETENTION (3RD) CAUSES OF ACTION

An employer may be liable for its own direct negligence in hiring, retaining, or failing to oversee an incompetent or unfit employee whose characteristics might pose a danger to a person the employee is expected to come into contact with due to the employment relationship if the employer knew or should have known that the employee created a particular risk and that particular harm materializes. (*Phillips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1139; *Doe v. Capital Cities* (1996) 50 Cal. App. 4th 1038.) Negligent hiring/supervision/ retention/training of an employee is based on direct liability for negligence, not vicarious liability. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815.)

To establish a negligent hiring, supervision, and/or retention cause of action, a plaintiff must plead and prove the following: (1) the employer hired employee; (2) the employee was/became unfit or incompetent to perform the work for which he was hired; (3) the employer knew or should have known the employee was/became unfit or incompetent and that this unfitness or incompetence created a particular risk to others; (4) the employee's unfitness or incompetence harmed plaintiff; and (5) the employer's negligence in hiring /supervising/ retaining the employee was a substantial factor in causing plaintiff's harm. (CACI No. 426; see also, *Federico v. Sup. Ct.* (1997) 59 Cal.App.4th 1207, 1213-14.) To recover for negligent hiring or supervision, the harm that occurred must be from the particular risk that the employer was aware of when it hired the employee. (See, *Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 837-838 [No liability for negligent hiring of pastor who was a child

molester when the plaintiff was not molested by the pastor, but by her brother, who had been molested by the pastor[.]) Additionally, the risk of the particular harm suffered must be reasonably foreseeable. (*D.Z. v. Los Angeles Unified School District* (2019) 35 Cal.App.5th 210, 229-230 [“to support her negligent supervision claim, appellant had to prove both that [the defendant] posed a risk of harm to students and that the risk of harm was reasonably foreseeable”].)

Here, while Plaintiff alleges “Defendant knew or should have known of Dien's dangerous propensities,” this is a conclusion without factual support. (FAC at ¶¶ 46-47, 49-51, 65-66, 98.) As support for this statement, Plaintiff alleges that: Dien's wife and another pastor knew about Plaintiff's allegations of abuse, and instead of reporting them, they and others spread false rumors and tried to intimidate Plaintiff into recanting; other parishioners told Plaintiff only God could judge Dien because he was a pastor; she was placed on an involuntary hold due to the rumors; at the time of her abuse there were rumors of Dien making sexually inappropriate comments to other minor females; and at his criminal trial, two other victims came forward. (FAC at ¶¶ 24-29, 32-34, 46, 49-51, 99-107.) However, all of this alleged information/knowledge of allegations and other victims came out well after Dien was hired, and after the alleged abuse of Plaintiff occurred. (*Ibid.*) Since the abuse had already occurred when Defendant purportedly obtained this knowledge, Plaintiff has not pled sufficient facts to show Defendant's conduct in hiring, supervising, and retaining Dien was a substantial factor in causing plaintiff's harm. (See, CACI No. 426; *Federico, supra*, 59 Cal.App.4th at 1213-1214.) Furthermore, while Plaintiff alleges that Dien's wife and another pastor knew about Plaintiff's allegations, there are no allegations showing either of those individuals had sufficient authority within Defendant such that their knowledge should be imputed on Defendant. (FAC at ¶¶ 49-51, 106-107.) Additionally, there are no facts stating what the rumors about another victim were, or who in authority at Defendant knew about them. Finally, Plaintiff alleges that Defendant was aware of the risk of sexual abuse of minors by pastors due to policies and procedures it created and General Conference rules, and it acknowledged the role of the Church in minimizing this risk. (FAC at ¶¶ 54-58, 66-72, 112-113.) However, these allegations are of no assistance to Plaintiff because they refer to a general risk of abuse by any pastor, not Dien specifically, and an employer's liability is based on its knowledge that the specific employee (here, Dien) was unfit and that unfitness created a particular risk that occurred. (See, CACI No. 426; *Federico, supra*, 59 Cal.App.4th at 1213-1214; *Evan F., supra*, 8 Cal.App.4th at 837-838.)

SEXUAL BATTERY (4TH) CAUSE OF ACTION

Under Civil Code section 1708.5, subdivision (a), a person commits sexual battery if he does any of the following:

- (1) Acts with the intent to cause a harmful or offensive contact with an intimate part of another, and a sexually offensive contact with that person directly or indirectly results.
- (2) Acts with the intent to cause a harmful or offensive contact with another by use of his or her intimate part, and a sexually offensive contact with that person directly or indirectly results.

- (3) Acts to cause an imminent apprehension of the conduct described in paragraph (1) or (2), and a sexually offensive contact with that person directly or indirectly results.

A cause of action for sexual battery requires that the batterer intends to cause a harmful or offensive contact and that the victim suffer a sexually offensive contact. (*Jacqueline R. v. Household of Faith Family Church, Inc.* (2002) 97 Cal.App.4th 198, 208; *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1225.)

Two doctrines may be implicated in assessing liability against an employer: (1) the doctrine of respondeat superior, pursuant to which the employer is indirectly or vicariously liable for torts committed by its employees within the scope of their employment; and (2) an agency theory pursuant to which an employer may be directly liable for acts of its agents. (*Myers v. Trendwest Resorts, Inc.* (2007) 148 Cal.App.4th 1403, 1427.)

Vicarious Liability

An employer can be “vicariously liable for the torts of its employees committed within the scope of the employment.” (See, *Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 296.) While whether or not the tort was committed within the scope of the employee’s employment is generally a question of fact, if the facts are undisputed and no conflicting inferences can be drawn from the facts presented, resolution of the issue becomes a question of law (*Mary M. vs. City of Los Angeles* (1991) 54 Cal.3d 202, 213.)

California courts have repeatedly held that sexual misconduct falls outside the course and scope of employment and should not be imputed to the employer. (*Juarez v. Boy Scouts of America* (2000) 81 Cal.App.4th 377; *M.P. v. City of Sacramento* (2009) 177 Cal.App.4th 121, 133 [court held that an alleged sexual assault by City’s firefighters while in a fire truck at a convention was outside the scope of employment and City was not vicariously liable]; *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 447-452 [the California Supreme Court held that a school district was not vicariously liable for the molestation of a student by a teacher because the teacher’s actions were not within the scope of employment]; *Ortega v. Pajaro Valley Unified School District* (1998) 64 Cal.App.4th 1023, 1057 [“John R. makes it clear that a teacher’s sexual abuse of a child is not an act for which a school district may be held responsible. The District can be held liable only for its own conduct which causes injury”]; *Alma W. v. Oakland Unified School Dist.* (1981) 123 Cal.App.3d 133, 144 [school custodian who sexually assaulted an 11 year-old student on school grounds, during working hours, was acting outside the scope of his employment]; *Steven F. v. Anaheim Union High School District* (2003) 112 Cal.App.4th 904, 908–09 [school district not vicariously liable for acts of teacher who had inappropriate sexual relationship with student].) This is true even if the abuse occurred during work hours on the employer’s premises. (*Juarez, supra*, 81 Cal.App.4th at 377.) The rationale is that sexual misconduct simply is not foreseeable, because it does not relate to employment duties or tasks, but rather, is committed only for the employee’s personal gratification. (*Lisa M., supra*, 12 Cal.4th at

302.) Thus, Defendant cannot be held liable for Dien's sexual abuse on a vicarious liability theory.

Ratification

As an alternative theory to respondeat superior, an employer may be liable for the conduct of an agent if it ratifies the conduct after the fact by voluntarily electing to adopt the agent's conduct. (*Doe v. Roman Catholic Archbishop of Los Angeles* (2016) 247 Cal.App.4th 953, 969.) Ratification is generally applied where the employer failed to investigate or respond to charges that an employee committed an intentional tort, where the employer fails to discharge the employee who committed the misconduct, or learns of the misconduct and fails to act. (*C.R. v. Tenet Healthcare Corp.*, *supra*, 169 Cal.App.4th at 1111.)

In the present case, Plaintiff alleges that she reported Dien's sexual abuse, and Defendant ratified Dien's conduct by allowing him to remain in his position after it knew of his abuse and by supporting him during the criminal proceedings. (FAC at ¶¶ 48, 52-53.) This is sufficient, for pleading purposes, to show Defendant ratified Dien's sexual abuse. Therefore, the demurrer to the 4th cause of action should be overruled.

NIED (5TH) CAUSE OF ACTION

Finally, Plaintiff next asserts a NIED claim, which is a form of negligence. (*Burgess v. Superior Court* (1992) 2 Cal. 4th 1064, 1071.) The elements of NIED are: (1) legal duty to use due care; (2) breach of such duty; (3) damages and injury; (4) cause of the resulting damage or injury. (*Huggins v. Longs Drug Store* (1993) 6 Cal. 4th 124, 129.) There are two types of NIED claims: direct victim and bystander.

Plaintiff appears to be asserting a direct victim claim for NIED. Direct victim NIED cases involve damages for serious emotional distress that results from the breach of a duty owed to the plaintiff that is assumed by the defendant or imposed as a matter of law. (*Burgess v. Superior Court* (1992) 2 Cal. 4th 1064, 1073.) Serious emotional distress exists if an ordinary, reasonable person would be unable to cope with it. (*Thing v. La Chusa* (1989) 48 Cal.3d 644, 668, fn 12.) Under a "direct victim" theory of NIED, the plaintiff must establish that the defendant owed a duty that is imposed by law, assumed by the defendant, or exists by virtue of a special relationship. (*Potter v. Firestone Tire & Rubber Co.* (1992) 6 Cal.4th 965, 985.) Additionally, "unless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests." (*Ibid.*) As discussed in detail above, Plaintiff fails to allege sufficient facts to show Defendant owed a duty to protect her from Dien's abuse.